ENTERPRISE CLOUD SOFTWARE SERVICES AGREEMENT

This Agreement is entered into between CloudScale Systems, Inc. ('Provider') and Apex Commercial Ltd. ('Customer')

SECTION 1. SUBSCRIPTION GRANT AND ACCEPTABLE USE
Provider agrees to use best efforts to make the Cloud Hosted Services available 24/7/365, subject to reasonable sche

SECTION 2. TERM AND AUTOMATIC RENEWAL
The initial term shall commence on the Effective Date and continue for a period of twelve (12) months. This Agreemer

SECTION 3. TERMINATION FOR CONVENIENCE
Either party may terminate this Agreement without cause at any time upon providing thirty (30) days prior written notic

SECTION 4. LIMITATION OF LIABILITY
Except for willful misconduct or gross negligence, in no event shall either party's aggregate cumulative liability arising

SECTION 5. INDEMNIFICATION BY PROVIDER

Provider shall indemnify, defend, and hold harmless Customer and its directors from and against any third-party claim

SECTION 6. CONFIDENTIAL INFORMATION AND DATA PRIVACY

Each party agrees to hold all proprietary customer data, trade secrets, and pricing schedules in strict confidence. The

SECTION 7. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without reg

IN WITNESS WHEREOF, the authorized representatives have executed this Agreement.

CloudScale Systems, Inc.

By: _____

Date: October 14, 2026

Apex Commercial Ltd.

By: _____

Date: October 14, 2026